

Prospective capital designation rights — September 22, 2026

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State: OWNER_APPROVED_DIRECTION; LOCKED within the following scope on repository acceptance.

Owner: Corporate Governance. **Legal entity:** Sable Harbor, LLC (SHI).

Authority and effective period

In the current September 22, 2026 conversation, the owner quoted the proposal preserving all five holders, nine directors and existing investor seats, and answered: “Adopt the half-original-units proposal”. No exact utterance timestamp was supplied. This is approval of the prospective fictional schedule below, not a recovered 2021 or 2022 agreement. September 22 is its newly authored synthetic adoption/effective day; source availability is no earlier than the actual implementation commit. Repository acceptance remains distinct from conversation authority and fictional execution.

Adopted schedule

Harrison Vale Partners retains its one director designation while holding **at least 9,250,000** ordinary participating units, half its original 18,500,000. Wolf Ridge Holdings retains its one designation while holding **at least 7,500,000**, half its original 15,000,000. Threshold units adjust proportionately only for unit splits or consolidations; they are not ten-percent-of-current-capital tests. No new issuance, preference, contribution duty, observer seat or operational veto is created.

An eligible holder may replace only its own nominee by written notice to the Corporate Secretary, subject to governing qualification and conflict rules. It cannot replace an independent director through this right. Loss of eligibility ends the designation entitlement; the governing removal/vacancy and nomination process still controls. There is no automatic founder appointment or reduction of the nine-member board. Evan Mercer and Marianne Voss remain the current nominees; this adoption makes no new appointment.

All five holders' assent to this **current designation schedule** is newly authored as synthetic governance execution on September 22: Daniel Mercer, Priya Raman, Jon Bell, Harrison Vale Partners and Wolf Ridge Holdings. The machine-readable consent population is [the designation source](#). These are fictional consent records, not real signatures, recovered originals or a claim of historical absence of side letters. No unlisted designation variation is incorporated; unrelated economic/governance rights are neither waived nor silently extinguished.

The 100 million equal participating units, 66.5% insider/33.5% outside interests, four independents, CEO/Chair separation and voluntary proportional paid-in mechanism remain unchanged. Declining a voluntary contribution does not itself change units or eligibility. There is no monetary entry or automatic funding receipt.

Exact supersession and inspection

Prospectively resolves the designation threshold/replacement and current-assent scope left outside the September 15 exact-capital direction and FIN-U03. Historical source packets, financing dates and original board appointments retain their bytes and states. The selected schedule does not certify every historical right or adopt debt/host terms.

`python -m enterprise.closeout.capital_rights` emits the source-bound current eligibility, five synthetic assents and preserved board population. Earlier as-of dates return NOT_YET_EFFECTIVE, not a backdated right.

Threshold equality, one-unit shortfall, splits, missing/duplicate assents and preserved unit totals are tested separately from execution.

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